

Ram Badan Ram v. State of U.P. and Another

Allahabad High Court · Division Bench · 30 July 2021 · Writ-C No. 10946 of 2021 · **Writ disposed; petitioner to apply under clause 6.14; licensee to decide on merits.**

HEADNOTE

A consumer's writ seeking quashing of a bill-cum-disconnection notice and a mandamus for interest-free installment of electricity arrears was disposed of without a merits grant. The power to receive outstanding dues in installments lies with the distribution licensee. The petitioner was directed to apply under clause 6.14 of the U.P. Electricity Supply Code, 2005; that application was to be decided on merits in accordance with law, with reconnection dealt with accordingly.

FACTUAL SUMMARY

Ram Badan Ram challenged a 19 February 2021 electricity bill-cum-disconnection notice of Purvanchal Vidyut Vitran Nigam and sought a mandamus that arrears be taken in easy equal installments without interest or collection charges. The corporation submitted that he had defaulted and had not complied with a One Time Settlement after depositing Rs. 62,731, so that application was not processed. After two listings as fresh with none appearing for him, the Division Bench took up the third listing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment of outstanding dues

HOLDING

The High Court will not itself quash a bill-cum-disconnection notice or grant installment of electricity arrears on a defaulting consumer's writ. The power to receive outstanding dues in installments vests in the distribution licensee. The consumer is to apply under clause 6.14 of the U.P. Electricity Supply Code, 2005; the licensee is to decide that application on merits in accordance with law, and any claim for reconnection is to be dealt with accordingly. ¶ 3

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court declined to grant interest-free installments by mandamus and relegated the petitioner to an application under clause 6.14, to be decided by the licensee on merits in accordance with law. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL-CUM-DISCONNECTION NOTICE DATED 19.02.2021 WAS LIABLE TO BE QUASHED

Prayer 1 was not adjudicated; the corporation's default and One Time Settlement non-compliance submission was recorded without a finding. ¶ 3

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO INSTALLMENTS WITHOUT INTEREST OR COLLECTION CHARGES, AND THE MERITS OF RECONNECTION

Left to the licensee's decision on a clause 6.14 application. ¶ 3